ÉLAN ZAAK

Transfer Pricing Benchmark Reference LATAM

First Quarter 2026

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ÉLAN ZAAK

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Introduction

We are pleased to present the first issue of our third volume of Élan Zaak's *Transfer Pricing Benchmark Reference LATAM*. The report was prepared by Élan Zaak Transfer Pricing Division, the experts conformed this team are professionals in Economics, Accounting and Finance, Certified Transfer Pricing Experts Witness, Master's In Business Administration, and Master's in Tax Law. The team's comprehensive knowledge ensures a robust and insightful examination of transfer pricing practices across Latin America. This report provides benchmarking profitability indicators as of the first quarter of 2026. Drawing on data from publicly traded and private entities with public financial information across the region and categorized by the Global Industry Classification Standard (GICS).

With over 20 years of experience, Élan Zaak has built a reputation for excellence in transfer pricing. Recognized since 2017 by ITR as a leading Transfer Pricing Firm in Mexico, we have successfully negotiated over a hundred Advance Pricing Agreements (APAs) across diverse industries. Our expertise spans compliance, dispute resolution, and the development of intercompany pricing policies tailored to the complexities of global markets.

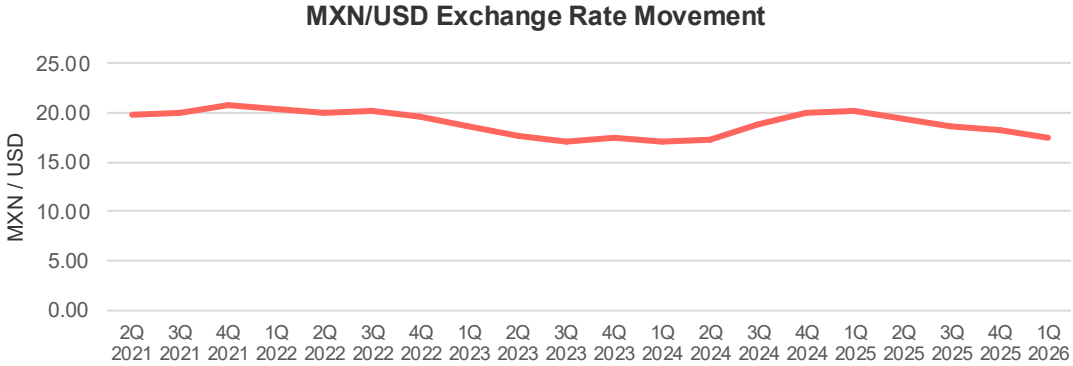
According to the OECD Economic Survey of Mexico (2026), the economy has remained broadly stable despite heightened global uncertainty and rising trade barriers, supported by resilient private consumption and solid macroeconomic fundamentals. However, growth has moderated and is expected to remain modest, reflecting weak investment, elevated uncertainty, and tighter trade conditions, particularly given Mexico's strong exposure to the U.S. market.

Inflation has eased but remains above target, while monetary policy is gradually normalizing under a data-dependent approach. Fiscal consolidation is underway following the sharp increase in the deficit in 2024, but limited fiscal space amid rising spending pressures and low tax revenues constrains policy support. Looking ahead, downside risks persist, underscoring the need for structural reforms to boost productivity, strengthen governance, and support medium-term growth.

Our analysis highlights key profitability metrics, including Gross Profit Margins, Net Operating Margins, Cost Plus Margins, Net Cost Plus and Return on Assets (ROA) for nonfinancial sectors, and ROA, Return on Capital (ROC), Return on Equity (ROE) for financial sector, reflecting sector-specific trends in LATAM. This comprehensive approach aids in aligning intercompany pricing policies with the arm's length principle while navigating complex regulatory landscapes.

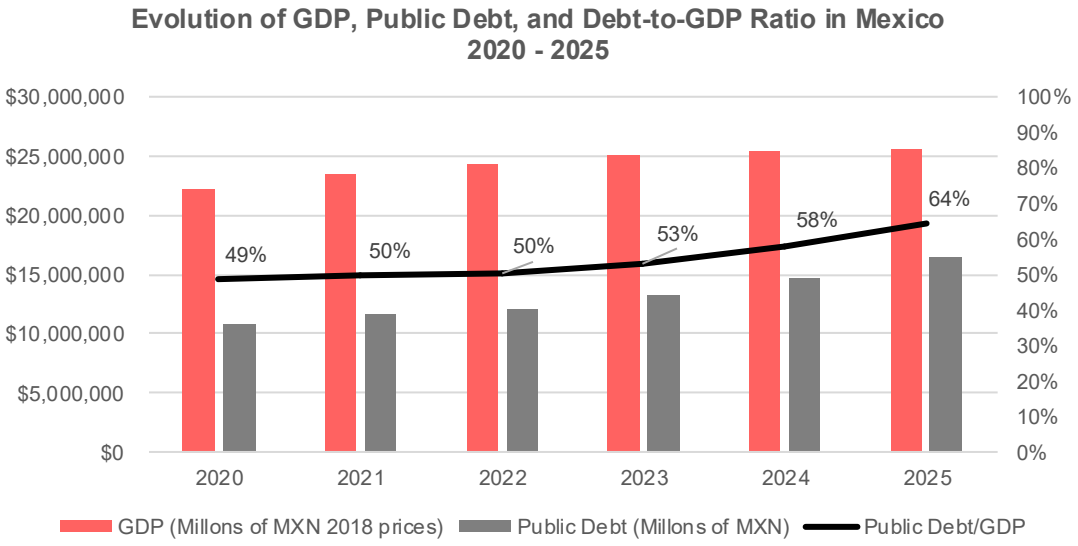
We hope this report serves as a valuable resource for understanding and addressing transfer pricing challenges in LATAM. For further information or an in-depth discussion of the findings, please feel free to contact us.

Mexico's Market Trends and Economic Outlook



Source: Prepared by Élan Zaak with information from Banco de México.

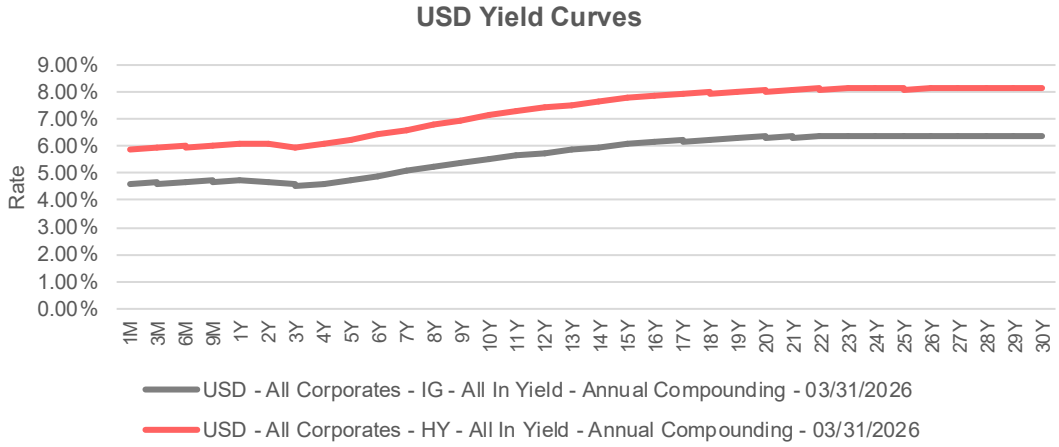
The chart illustrates the trend of the Mexican peso against the U.S. dollar from 2Q 2021 to 1Q 2026. After stabilizing around 20.50 MXN/USD in 2021, the peso gradually appreciated through 2022 and 2023, supported by strong capital inflows and favorable rate differentials, reaching a cycle low of 17.00 MXN/USD in 1Q 2024. Beginning in mid-2024, the currency weakened amid rising external volatility, briefly exceeding 20.00 MXN/USD by late 2024 and early 2025, before regaining momentum over the year. By 4Q 2025, the peso had appreciated to 18.31 MXN/USD, reflecting reduced volatility and improved market sentiment. Most recently, in 1Q 2026, the exchange rate strengthened further to 17.51 MXN/USD, signaling a continued recovery supported by easing global financial pressures.



Source: Prepared by Élan Zaak with information INEGI and Banco de México.

The chart shows the evolution of Mexico's GDP (in millions of MXN at 2018 constant prices), public debt, and the debt-to-GDP ratio from 2020 to 2025. Following the sharp contraction in 2020, GDP recovered steadily through 2025, reaching MXN 25.5 trillion. In contrast, public debt expanded at a faster pace, rising from MXN 10.8 trillion in 2020 to MXN 16.4 trillion in 2025. As a result, the debt-to-GDP ratio increased from 49% to 64%, reflecting a sustained deterioration in fiscal metrics as debt growth continued to outstrip economic expansion.

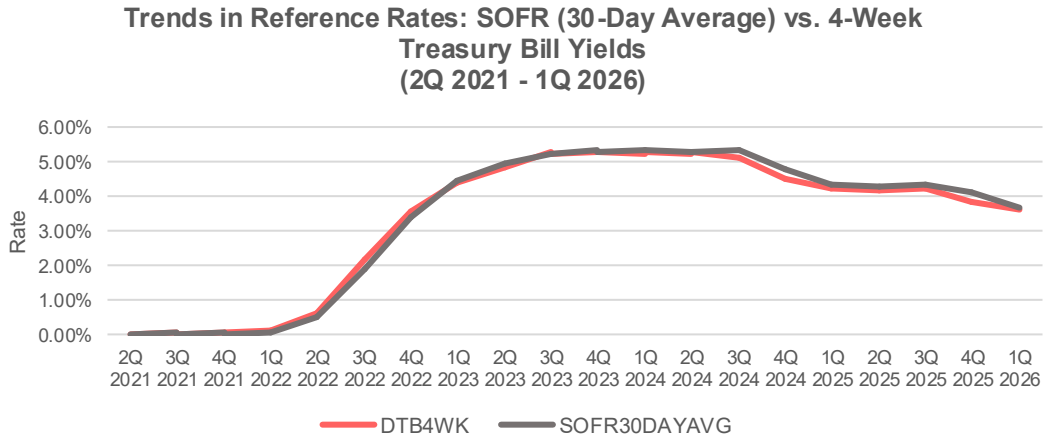
USA Interest Rate Analysis



Source: Prepared by Élan Zaak with information from S&P Capital IQ.

The chart compares the yield curves for USD corporate bonds as of March 31st, 2026, distinguishing between Investment Grade (IG) and High Yield (HY) issuers. IG bonds exhibit lower yields across all maturities, reflecting stronger credit quality, while HY bonds offer higher yields as compensation for elevated credit risk.

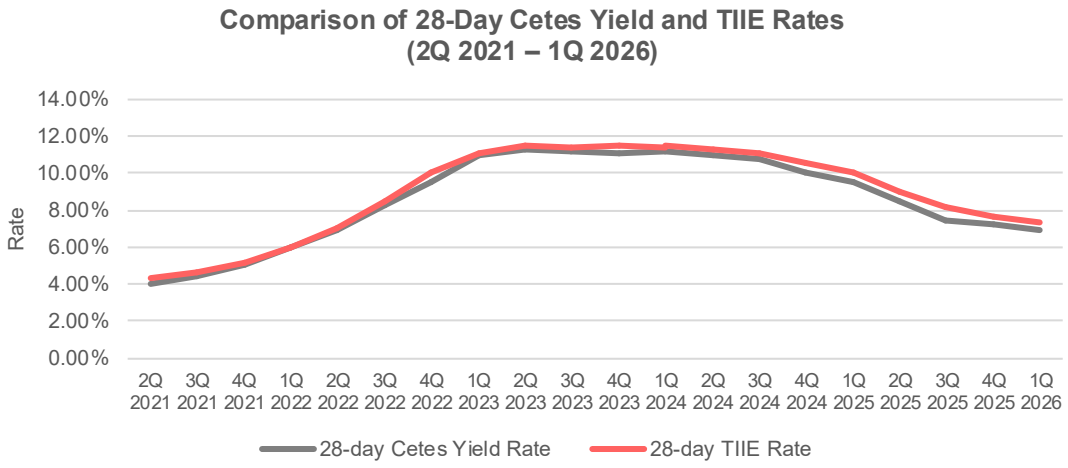
Both curves remain upward sloping, indicating higher required returns for longer maturities. The HY curve steepens more notably in the intermediate tenors before flattening toward the long end, whereas the IG curve shows a smoother and more gradual increase, stabilizing beyond 20 years. Long-term yields converge around 6.3%–6.4% for IG and 8.1% for HY. The persistent spread between IG and HY yields highlights continued credit risk differentiation, while the overall level and shape of the curves suggest a still cautious market environment with sustained risk premium, despite some easing in financial conditions relative to prior periods.



Source: Prepared by Élan Zaak with information from Federal Reserve Bank of St. Louis.

The chart compares the SOFR 30-day average and the 4-week U.S. Treasury Bill yield (DTB4WK) from 2Q 2021 to 1Q 2026. From 2021 to late 2023, both rates increased sharply amid an aggressive monetary tightening cycle, peaking at around 5.3%. Since then, rates have declined as inflationary pressures eased and policy began to normalize. By 1Q 2026, the 4-week T-Bill yield reached 3.62% and SOFR 3.68%.The narrow spread between both rates highlights their close linkage, while the overall decline suggests easing financial conditions, albeit still above pre-tightening levels.

Mexico Interest Rate Analysis



Source: Prepared by Élan Zaak with information from Banco de Mexico.

The chart illustrates the evolution of the 28-day Cetes yield and the 28-day TIIE, two fundamental reference rates in Mexico's financial markets. Cetes (Certificados de la Tesorería) serve as the risk-free benchmark through short-term government debt, while the TIIE (Tasa de Interés Interbancaria de Equilibrio) reflects the average cost of interbank lending and acts as a base for credit and derivative pricing.

From early 2021, both rates remained relatively low as Banco de México maintained an accommodative monetary policy stance. However, as inflationary pressures intensified, the central bank initiated a sharp tightening cycle from mid-2021 onward, driving rates upward. By 2Q 2023, both indicators reached their peak, with the 28-day Cetes yield at 11.25% and the 28-day TIIE at 11.52%, marking the culmination of the restrictive phase.

Following this peak, rates began to stabilize and gradually decline. Throughout 2024, both reference rates remained at elevated levels but showed early signs of moderation. This trend became more pronounced during 2025, as inflationary pressures eased and monetary policy shifted toward a more neutral stance.

By 1Q 2026, the downward trajectory has continued, with the 28-day Cetes yield decreasing further to 6.89% and the 28-day TIIE to 7.29%. Despite this decline, the spread between both rates persists, reflecting the structural liquidity premium associated with interbank lending relative to sovereign instruments.

Overall, this continued decline reinforces the narrative of monetary normalization by Banco de México, supported by a more controlled inflation environment and improved macroeconomic stability. At the same time, the still relatively elevated levels of both rates suggest that monetary conditions remain restrictive compared to the pre-tightening period, indicating a cautious approach by the central bank.

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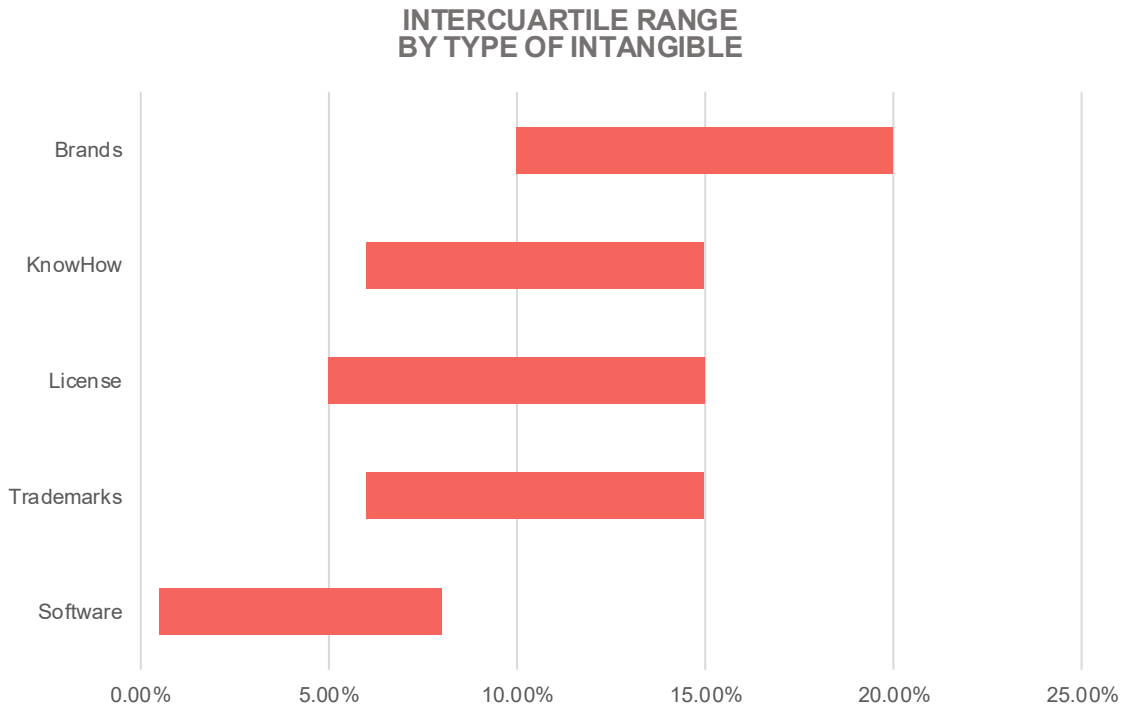
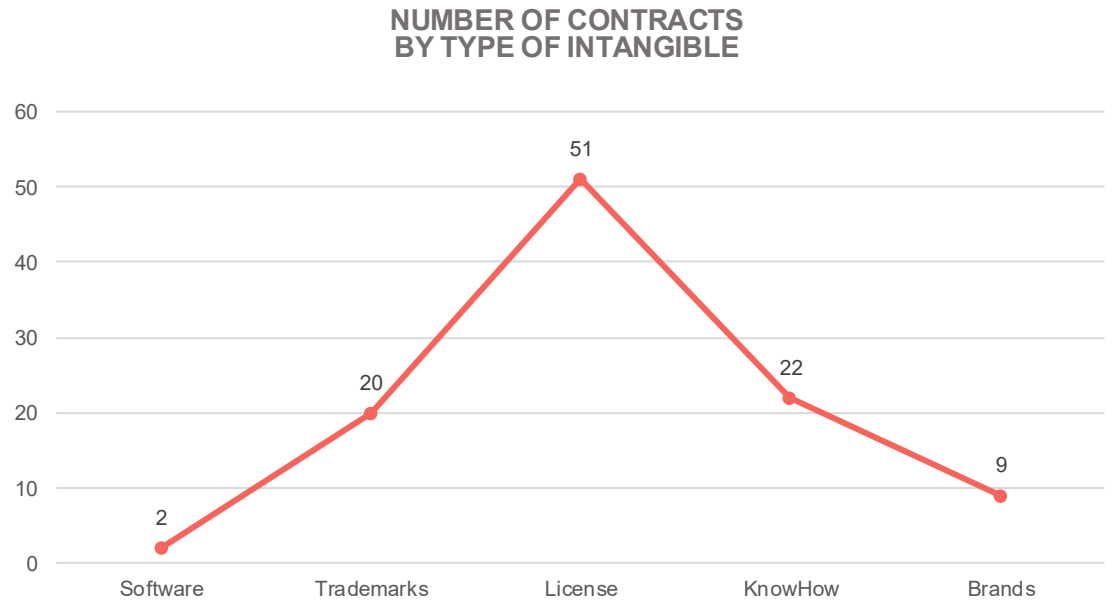
North and South America
Royalties Analysis (2Q25 - 1Q26)



Source: Prepared by Élan Zaak with information from Royalty Range

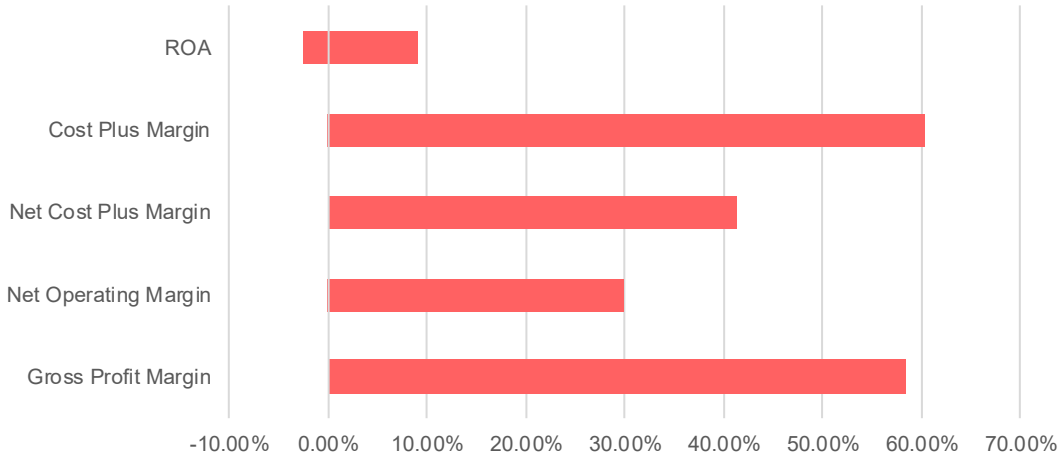


Source: Prepared by Élan Zaak with information from Royalty Range.

Energy Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	34	34	34	34	34
First Quartile	19.92%	3.47%	3.35%	1.94%	-2.55%
Median	**43.22%**	**16.21%**	**19.36%**	**20.37%**	**2.85%**
Third Quartile	58.51%	29.92%	41.41%	60.32%	6.48%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



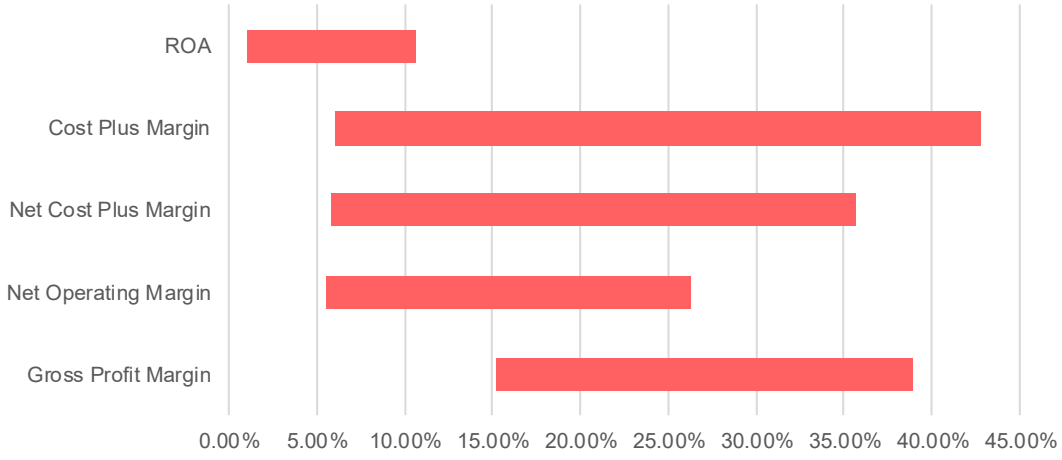
Geographic Distribution of Companies

Source: Prepared by Élan Zaak with information from S&P Capital IQ.

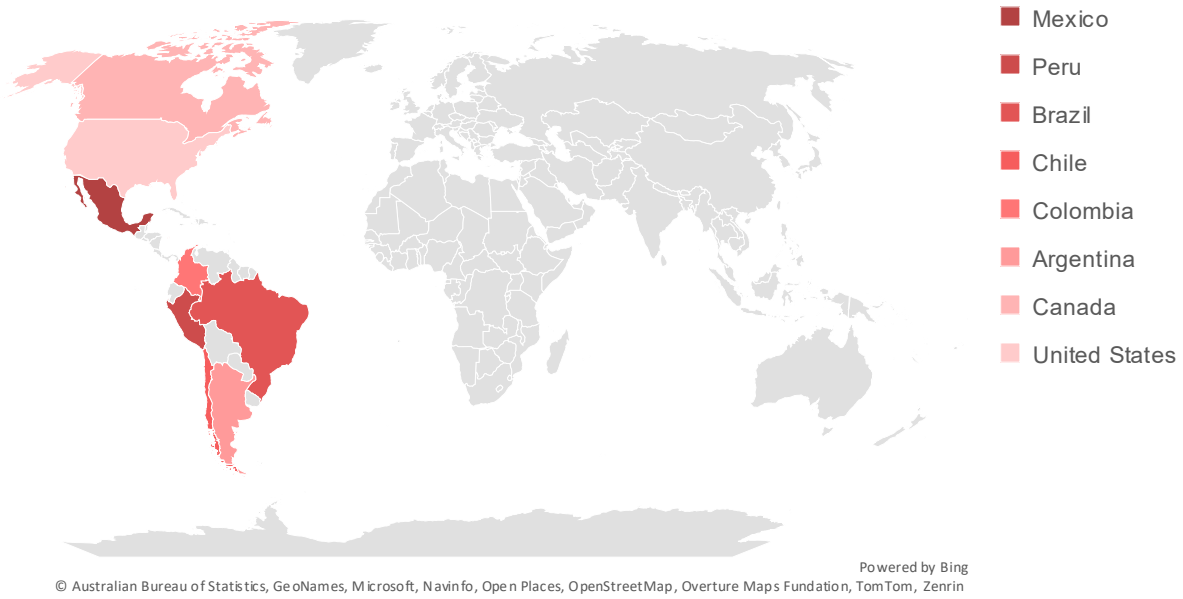
Materials Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	36	36	36	36	36
First Quartile	15.20%	5.56%	5.89%	6.10%	1.08%
Median	**27.26%**	**12.29%**	**14.01%**	**18.12%**	**4.05%**
Third Quartile	38.95%	26.25%	35.64%	42.75%	10.61%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies



Source: Prepared by Élan Zaak with information from S&P Capital IQ.

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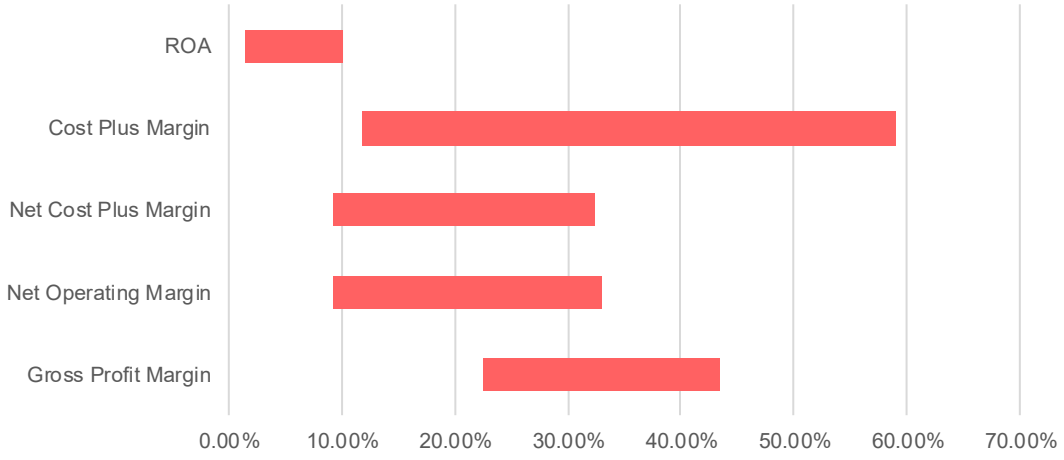
Industrials Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	37	37	37	37	37
First Quartile	22.53%	9.20%	9.21%	11.84%	1.50%
Median	**29.81%**	**16.79%**	**19.25%**	**24.37%**	**4.44%**
Third Quartile	43.40%	33.07%	32.39%	58.97%	10.13%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies

Source: Prepared by Élan Zaak with information from S&P Capital IQ.

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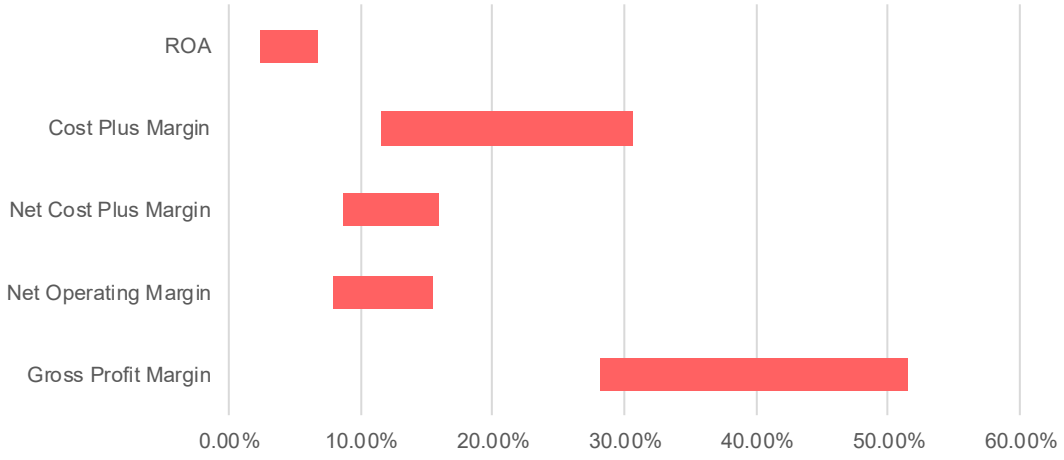
Consumer Discretionary
Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	28	28	28	28	28
First Quartile	28.12%	7.98%	8.68%	11.63%	2.38%
Median	**39.55%**	**11.47%**	**13.67%**	**20.77%**	**4.96%**
Third Quartile	51.43%	15.56%	15.89%	30.63%	6.73%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies

Source: Prepared by Élan Zaak with information from S&P Capital IQ.

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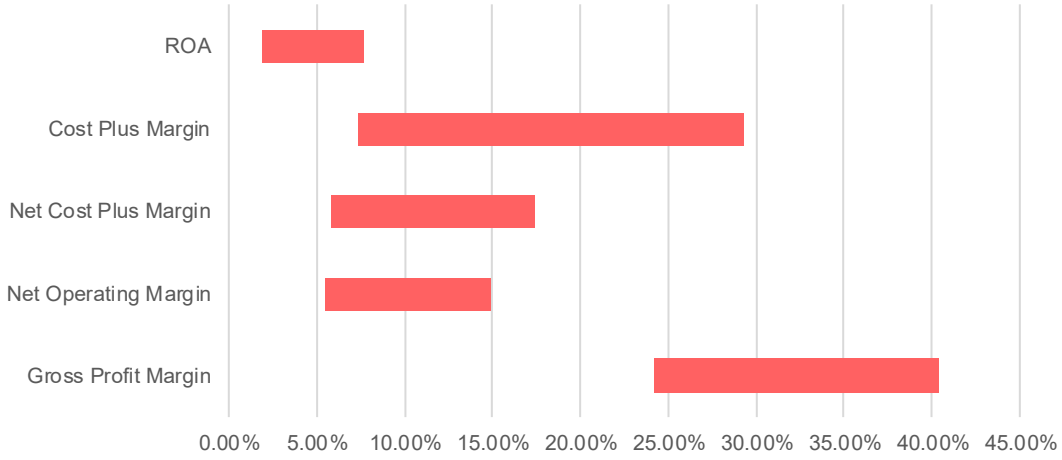
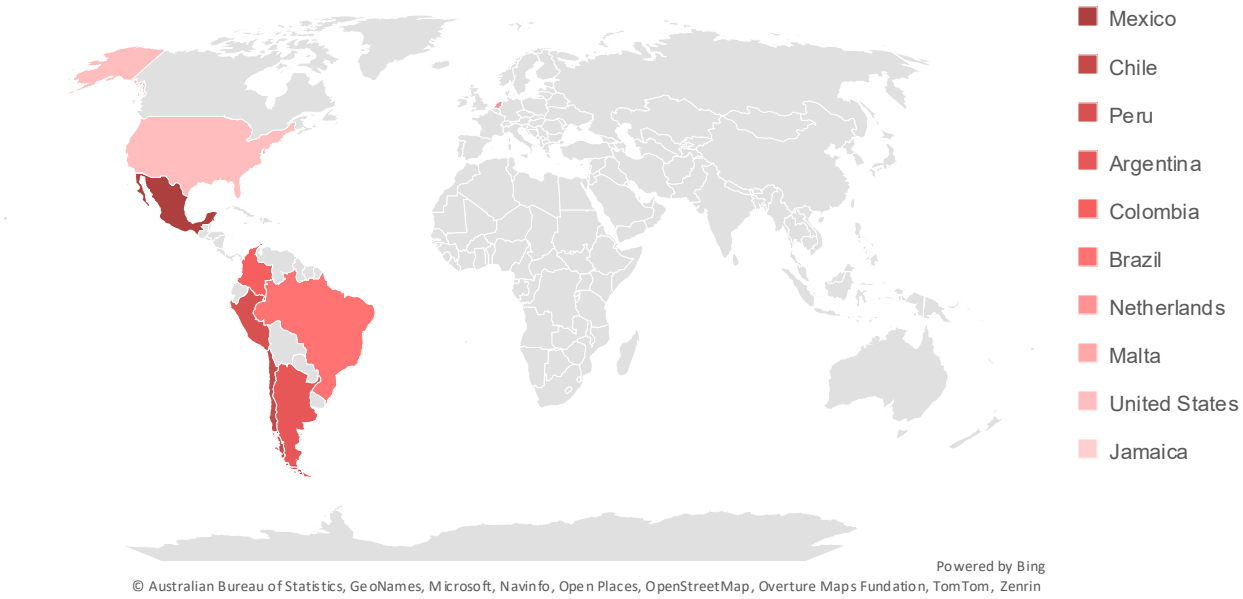
Consumer Staples Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	36	36	36	36	36
First Quartile	24.16%	5.54%	5.86%	7.38%	1.91%
Median	**30.99%**	**8.21%**	**8.94%**	**13.77%**	**4.33%**
Third Quartile	40.37%	14.86%	17.46%	29.31%	7.65%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies

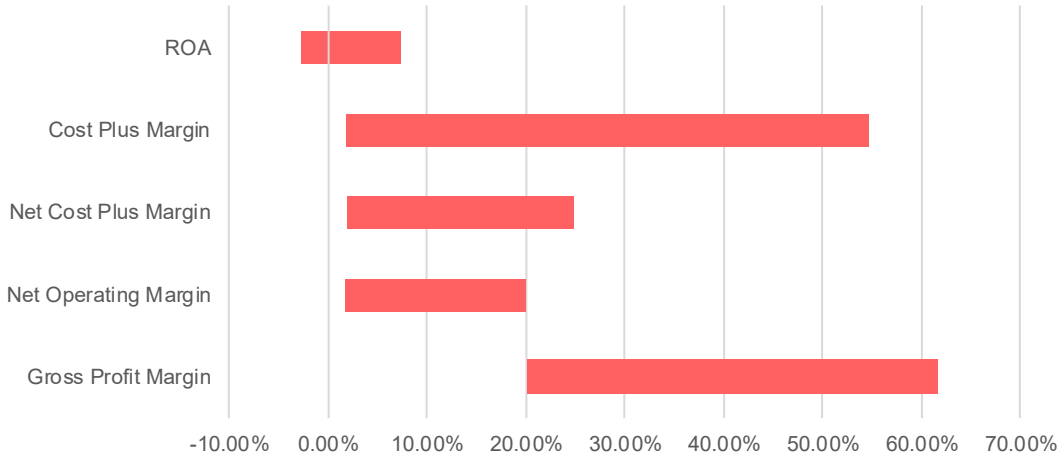


Source: Prepared by Élan Zaak with information from S&P Capital IQ.

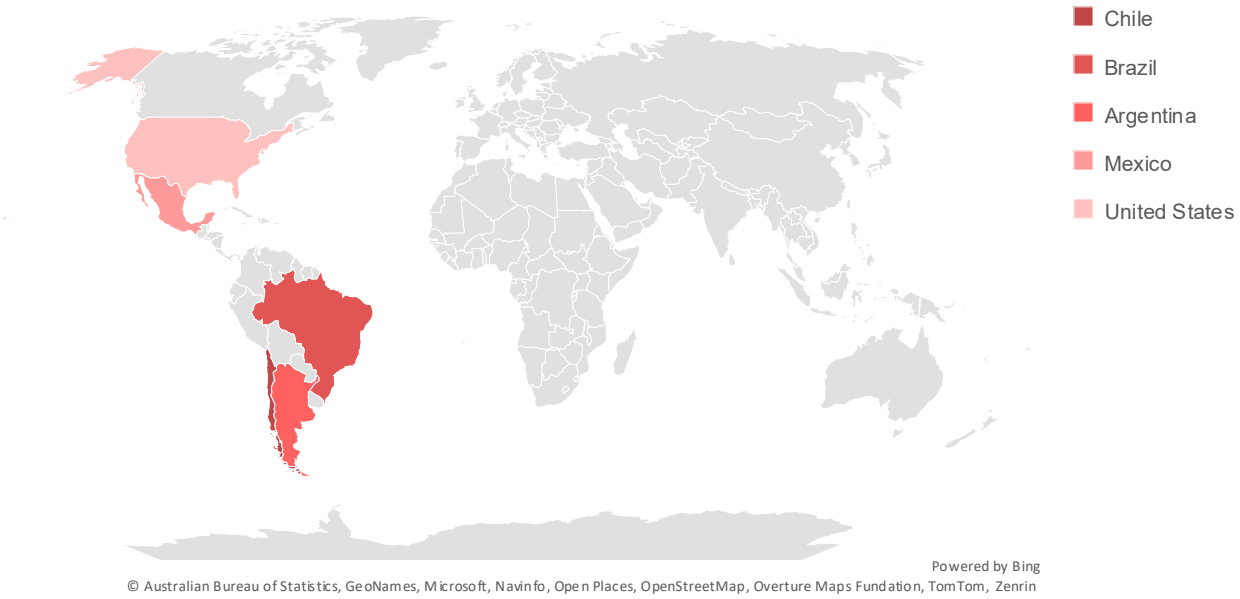
Health Care Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	25	25	25	25	25
First Quartile	20.21%	1.81%	1.89%	2.00%	-2.65%
Median	**35.56%**	**9.25%**	**10.19%**	**16.78%**	**1.34%**
Third Quartile	61.74%	19.92%	24.88%	54.80%	4.75%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies

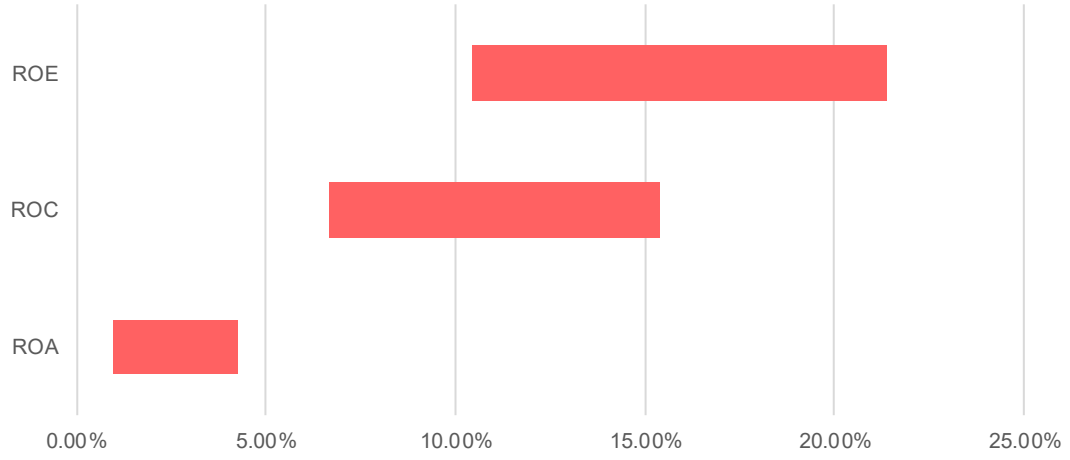


Source: Prepared by Élan Zaak with information from S&P Capital IQ.

Financials Margins 1Q 2026

RANGE	ROA	ROC	ROE
Number of Companies	38	38	38
First Quartile	0.95%	6.70%	10.45%
Median	**2.20%**	**12.80%**	**16.40%**
Third Quartile	4.25%	15.40%	21.40%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies

Source: Prepared by Élan Zaak with information from S&P Capital IQ.

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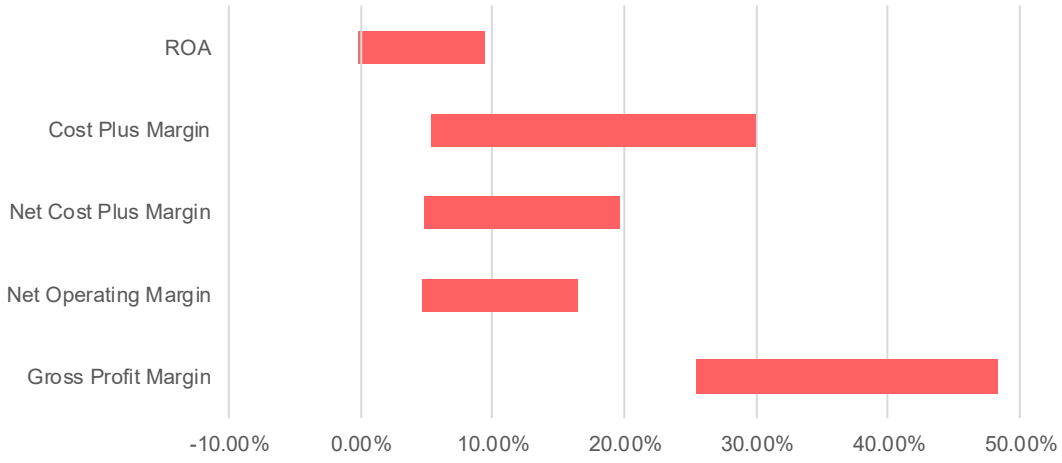
IT Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	27	27	27	27	37
First Quartile	25.45%	4.60%	4.83%	5.34%	-0.04%
Median	**36.04%**	**9.53%**	**10.54%**	**12.58%**	**2.85%**
Third Quartile	48.28%	16.39%	19.60%	29.92%	9.46%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies

Source: Prepared by Élan Zaak with information from S&P Capital IQ.

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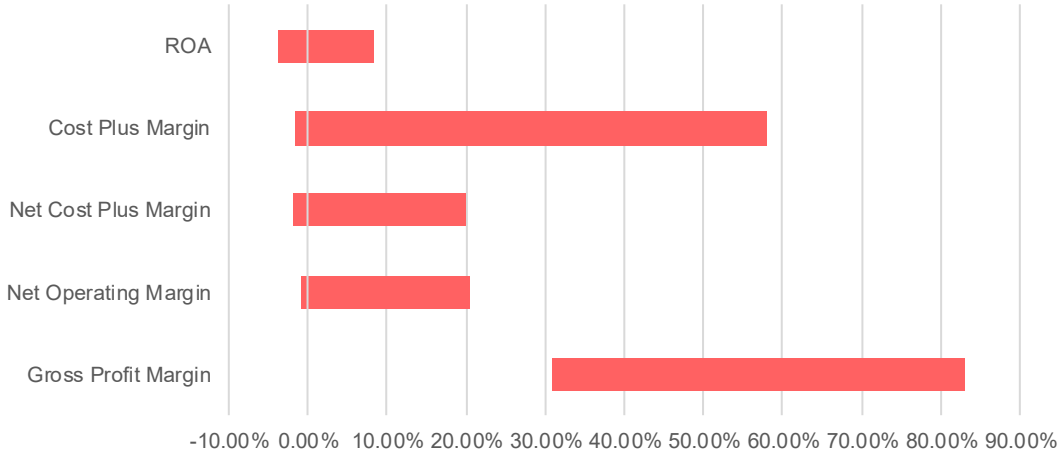
Communication Services
Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	25	25	25	25	25
First Quartile	30.97%	-0.93%	-1.78%	-1.74%	-3.83%
Median	**49.93%**	**6.67%**	**6.40%**	**12.28%**	**0.04%**
Third Quartile	83.11%	19.56%	18.18%	56.35%	4.56%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



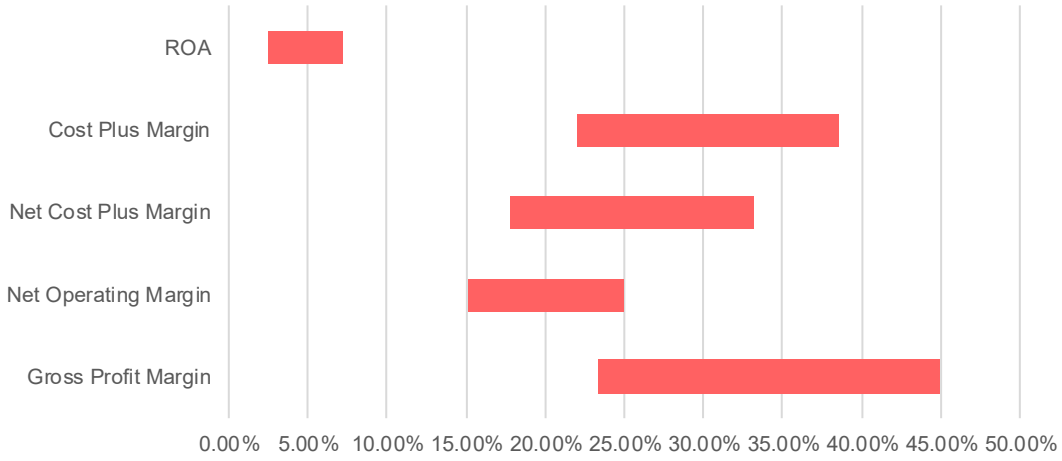
Geographic Distribution of Companies

Source: Prepared by Élan Zaak with information from S&P Capital IQ.

Utilities Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	33	33	33	33	33
First Quartile	23.40%	15.10%	17.78%	21.98%	2.45%
Median	**31.72%**	**21.16%**	**26.84%**	**29.92%**	**4.24%**
Third Quartile	44.95%	24.92%	33.19%	38.51%	7.19%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



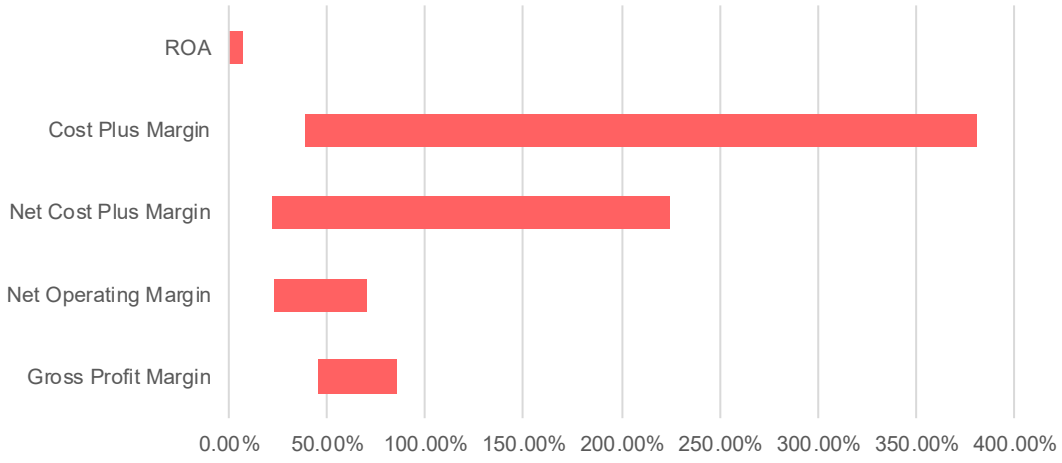
Geographic Distribution of Companies

Source: Prepared by Élan Zaak with information from S&P Capital IQ.

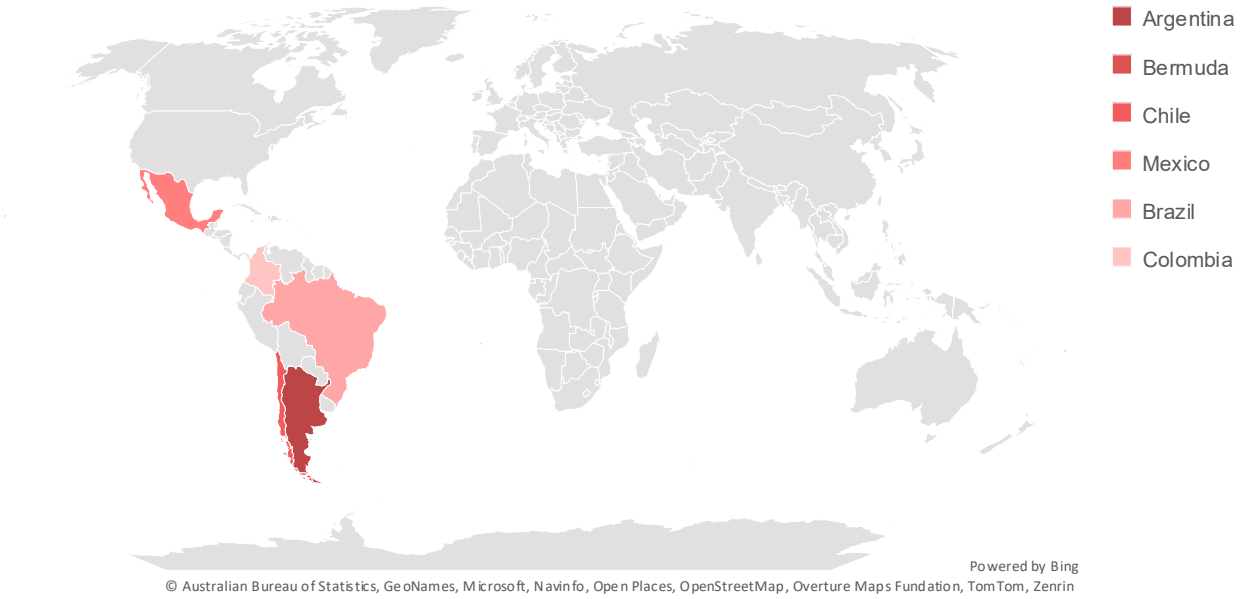
Real Estate Margins 1Q 2026

RANGE	Gross Profit Margin	Net Operating Margin	Net Cost Plus Margin	Cost Plus Margin	ROA
Number of Companies	31	31	31	31	31
First Quartile	45.15%	22.80%	21.75%	38.23%	0.05%
Median	**74.58%**	**58.49%**	**85.44%**	**130.11%**	**3.35%**
Third Quartile	85.84%	69.64%	224.75%	380.61%	6.85%

Source: Prepared by Élan Zaak with information from S&P Capital IQ.



Geographic Distribution of Companies



Source: Prepared by Élan Zaak with information from S&P Capital IQ.

Criteria

- Data was sourced from Capital IQ was collected on March 31st, 2026.

- **Why the Yield Curve is Important:** The yield curve is a graphical representation of the relationship between bond yields and their maturities. It is a critical tool for understanding market expectations about interest rates, inflation, and economic growth.
  - **Steep yield curve:** Signals strong future economic growth expectations.
  - **Flat or inverted yield curve:** Often indicates economic uncertainty or a potential recession. For investors, the yield curve helps assess risk and return trade-offs over different time horizons.
  - **Investment-Grade (IG) Bonds:** These are bonds issued by entities with higher credit ratings (e.g., BBB- or above by S&P). They are considered low-risk investments with lower yields.
  - **High-Yield (HY) Bonds:** Also known as "junk bonds," these are issued by entities with lower credit ratings (below BBB-). They carry higher default risk but offer higher yields to compensate investors for the additional risk.

- **Why We Analyze Reference Interest Rates:** Reference rates serve as the baseline for assessing the risk premium of other assets. They influence borrowing costs, investment decisions, and overall market dynamics. Monitoring changes in risk-free rates helps: Gauge central bank policies, evaluate relative bond performance and understand shifts in credit spreads.
  - **SOFR (Secured Overnight Financing Rate):** SOFR is a benchmark interest rate reflecting the cost of borrowing cash overnight, collateralized by U.S. Treasury securities. It is widely used as a reference rate in financial contracts, replacing LIBOR for more transparency and reliability.
  - **Treasury Bill Yields:** These are the interest rates on short-term U.S. government securities with maturities of up to one year. They are considered risk-free because they are backed by the U.S. government and indicate market expectations for short-term interest rates.

- In this benchmark reference report, Elan Zaak is providing information on the number of recent royalty agreements that were signed and came into effect from April 1st, 2025, onward (covering last four quarters) in North and South America covering this intangibles: Brands, Trademark, Know-How, License and Software. The agreements are predominantly based on sales, ensuring that royalties are calculated as a percentage of the revenue generated from the use or exploitation of the licensed intangibles, according to data sourced from Royalty Range.

Criteria

- For all margins presented, we included publicly traded Latin American and the Caribbean companies as of the report's reference date, with data obtained from S&P Capital IQ. Companies were grouped by sectors following the GICS to ensure each category had sufficient components and detail to support the analysis objectives.

- This publication includes companies selected based on their geographic presence and strategic relevance to Latin America and the Caribbean. Specifically, it considers companies with significant operations in the region as well as those whose headquarters are located within the defined geographic boundaries (regardless of whether their business activities extend beyond these areas).

- For this analysis, we selected the top 10 companies by market capitalization within each sector (Large, Mid, Small, and Micro Cap), resulting in an average sample of 40 companies for each sector analysis.

- **Margins Definitions:**
  - **Net Operating Margin (NOPM):** Operating Profit / Net Sales
  - **Gross Profit Margin:** Gross Profit / Net Sales
  - **Return on Assets (ROA):** Operating Profit / Total Assets
  - **Cost Plus Margin:** Operating Profit / Cost of Goods Sold
  - **Net Cost Plus Margin:** Operating Profit / Total Operating Costs
  - **Return on Capital (ROC):** Operating Profit / Capital
  - **Return on Equity (ROE):** Operating Profit / Shareholders´ Equity

- Margins were calculated in the reporting currency of each company.

Intangible Agreements Definitions

Intangible assets are critical components of modern business value and strategy. These assets, which include brands, trademarks, know-how, licenses, and software, often require formal agreements to govern their use, protection, and monetization. Intangible agreements provide the legal framework to define the rights and obligations of parties involved in the transfer, licensing, or use of these assets. Below is a breakdown of the key types of agreements associated with these benchmark report:

1. **Brands:** A brand intangible agreement establishes the terms under which a company or individual grants rights to use the brand name, identity, and associated value to another party. This type of agreement often focuses on maintaining brand equity, reputation, and consistency in usage, while defining royalties, restrictions, and marketing expectations.

2. **Trademark:** A trademark intangible agreement governs the rights to use a registered symbol, logo, design, or phrase that distinguishes a product or service. These agreements typically specify territorial usage, exclusivity, renewal terms, and the protection of the trademark from misuse.

3. **Know-How:** A know-how agreement involves the transfer or licensing of confidential knowledge, expertise, or proprietary methods used in processes or product development. This type of agreement protects the dissemination of trade secrets and often includes confidentiality and non-compete clauses.

4. **License:** A license agreement for intangibles grants permission to use a particular asset (e.g., intellectual property) under specific terms, such as duration, scope, and financial compensation. Licensing can apply broadly to copyrights, patents or other intellectual property.

5. **Software:** A software agreement defines the rights and responsibilities of the licensor and licensee regarding the use of a specific software program. This agreement may address installation, usage limits, updates, intellectual property rights, and restrictions on reverse engineering or resale.

Industry Definitions

The Global Industry Classification Standard (GICS) divides the economy into 11 sectors, each representing a key area of economic activity. Here's a description of each:

1. Energy: Companies involved in the exploration, production, and sale of oil, gas, and coal. This sector also includes businesses that provide energy equipment and services.

2. Materials: This sector covers companies that produce chemicals, construction materials, glass, paper, forest products, and related packaging products. It also includes metals, mining, and steel companies.

3. Industrials: Companies that produce machinery, equipment, and supplies used in manufacturing and construction are part of this sector. It also includes aerospace, defense, transportation, and services such as waste management and logistics.

4. Consumer Discretionary: Companies in this sector provide goods and services considered non-essential, like automobiles, consumer durables, leisure products, and retail services. It also includes media, hotels, restaurants, and luxury goods.

5. Consumer Staples: This sector includes companies that produce essential goods, such as food, beverages, and household products. It also covers producers of personal care items, tobacco, and other consumables that people typically purchase regularly.

6. Health Care: Encompasses companies that provide medical services, manufacture medical equipment and drugs, and conduct research and development of biotechnology. It also includes health care providers and services.

7. Financials: Comprises firms engaged in activities such as banking, investment, insurance, real estate, and capital markets. It includes companies that provide financial services to individuals and businesses.

8. Information Technology: This sector includes companies that produce software, technology hardware, semiconductors, and IT services. It covers businesses involved in digital systems, data processing, and other information technology solutions.

9. Communication Services: Companies that provide communication and related services, including telecom, media, entertainment, and interactive media and services. This sector is essential for content and data transmission.

10. Utilities: Companies in this sector are involved in the production and delivery of utilities like electricity, water, and gas. It includes both public and private utility companies as well as renewable energy providers.

11. Real Estate: This sector includes real estate investment trusts (REITs) and real estate management and development firms. Companies in this sector own, develop, and manage various property types, from residential to commercial.

Market Cap Sizes

Market capitalization, or "market cap", measures the total value of a company's outstanding shares and is often used to categorize companies by size. Here's a breakdown of the main market cap categories seen in this volume:

1. Large Cap: Large-cap companies typically have a market cap of $10 billion or more. These are well-established companies that are often leaders in their industries, such as Apple, Microsoft, and Coca-Cola. Large-cap stocks tend to offer stability and lower volatility, making them suitable for conservative investors, though they may experience slower growth compared to smaller companies.

2. Mid Cap: Mid-cap companies usually have a market cap between $2 billion and $10 billion. These companies are generally established businesses in growing industries, with more growth potential than large-cap companies but higher risk. Mid-cap stocks can offer a balance between stability and growth, making them appealing for investors seeking moderate risk and return.

3. Small Cap: Small-cap companies have a market cap between $250 million and $2 billion. These are often newer companies or firms in niche sectors, with significant growth potential. Small-cap stocks can be more volatile and are riskier investments, but they also offer the possibility of higher returns for investors willing to take on more risk.

4. Micro Cap: Micro-cap companies have a market cap of less than $250 million. These are typically small, young companies or businesses in emerging industries. Micro-cap stocks are highly speculative and can be very volatile. They may offer substantial growth potential, but they also carry high risk due to limited financial resources and less-established business models.

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Disclaimer

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